

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable Ron Del Pozzo
Judge of the Superior Court
County of Santa Clara
191 North First Street
San Jose, CA 95113

Re: Padilla, Jose Everardo
CDC No.: AN2316
Case No.: C1199340
Date of Sentence: 12/14/2012

Dear Honorable Ron Del Pozzo:

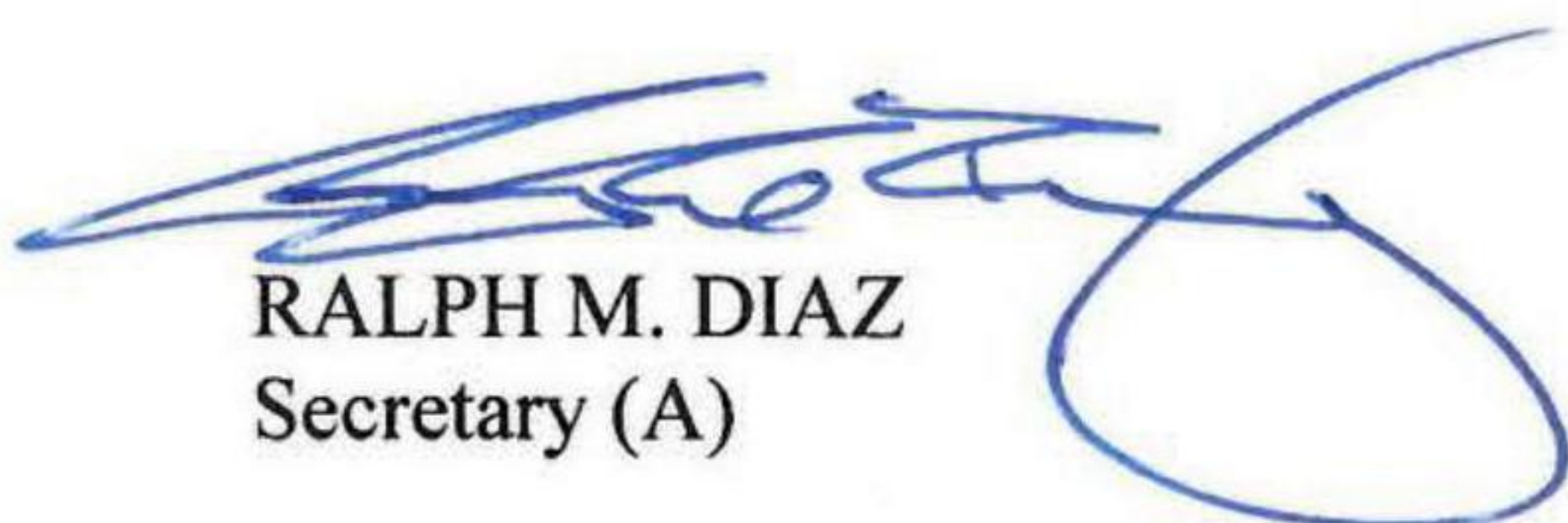
The purpose of this letter is to provide the court with authority to resentence Jose Everardo Padilla pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Padilla was sentenced in 2012, and was convicted of section 245, subdivision (a)(1), Assault w/ddly weapon. The trial court sentenced inmate Padilla on 12/14/2012. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Padilla's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Padilla's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Patricia M. Lucas, Santa Clara County Presiding Judge
Santa Clara District Attorney
Private Attorney

FELONY ABSTRACT OF JUDGMENT—DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: SANTA CLARA - HALL OF JUSTICE								
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Jose Everardo Padilla		DOB: 07/08/91				C1199340 ✓ -A		
AKA: Jose Everado Padilla						C1088820 -B		
CII NO.: A28433986						-C		
BOOKING NO.: 10044149		☐ NOT PRESENT				-D		
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT								
DATE OF HEARING 12/14/12 ✓		DEPT. NO. 24		JUDGE Ron Del Pozzo ✓				
CLERK C. Stafford		REPORTER B. Gonzalez		PROBATION NO. OR PROBATION OFFICER D. Valerio		☐ IMMEDIATE SENTENCING		
COUNSEL FOR PEOPLE R. Baker		ENTERED		COUNSEL FOR DEFENDANT R. Ippolito ✓		☐ APPOINTED		

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment _____
(number of pages attached) *mill*

☐ Additional counts are listed on attachment _____ (number of pages attached)

11/17

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YR.)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	1/3 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (REFER TO Item 5)	\$54 STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED		
						JURY	COURT	PLEA									YRS.	MOS.	
A1	PC	245(a)(1)	Assault w/ddly weapon	2010	10 / 15 / 10			X	M									3	0
B6	PC	245(a)(1)	Assault w/ddly weapon	2010	10 / 15 / 10			X	M		X							1	0
B7	PC	245(a)(1)	Assault w/ddly weapon	2010	10 / 15 / 10			X	M		X							1	0
					/ /														
					/ /														
					/ /														

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
A1	PC186.22(b)(1)(C)	10	PC12022.7	3			13 0
B6	PC186.22(b)(1)(C)	PS	PC12022.7	1	PC667/1192.7		1 0
B7	PC186.22(b)(1)(C)	PS	PC12022.7	1	PC667/1192.7		1 0

3. ENHANCEMENTS charged and found to be true for PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL

4. Defendant sentenced ☐ to county jail per 1170(h)(1) or (2)

☒ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☒ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement

☐ per PC 667(b)-(l) or PC 1170.12 (strike prior)

☐ per PC 1170(a)(3). Preconfinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: _____

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 20 0

Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs.
 DEFENDANT: Jose Everardo Padilla

C1199340 -A C1088820 -B -C -D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$ 240 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ 240 per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.
 Case B: \$ 240 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ 240 per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.
 Case C: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.
 Case D: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ GEN ☐ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
 Case B: \$ GEN ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
☒ *Victim name(s), if known, and amount breakdown in item 13, below. ☐ *Victim name(s) in probation officer's report.

c. Fines:

Case A: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case B: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case C: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case D: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Operations Assessment: \$ per PC 1465.8. e. Conviction Assessment: \$ per GC 70373. f. Other: \$ per (specify):

10. TESTING: ☒ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☐ other (specify):

11. REGISTRATION REQUIREMENT: ☒ per (specify code section): PC186.30

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: Suspended: Served forthwith:

13. Other orders (specify): A - PC29800/30305 adv. Add'l fees wvd. *\$1,711.37 to VCGCB. Adv 3 yrs parole. B - PC29800/30305. Add'l fees wvd. Adv 3 yrs parole.

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	976	849	127
B	0	0	0
C			
D			
Date Sentence Pronounced		Time Served in State Institution	
12 14 12		DMH CDC CRC	

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c.

Defendant's race/national origin:

15. EXECUTION OF SENTENCING IMPOSED

- a. ☒ at initial sentencing hearing
 b. ☐ at resentencing per decision on appeal
 c. ☐ after revocation of probation
 d. ☐ at resentencing per recall of commitment (PC 1170(d).)
 e. ☐ other (specify):

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
 To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation
☐ county jail ☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE
 J. Maggio

DATE
 12/18/12

